

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16

Honorable Vincent I. Parrett, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2270

July 17, 2026

9:00 and 9:01 A.M.

Unauthorized Recording of Court Proceedings will be Punished

ORAL ARGUMENT

If you are contesting the tentative ruling then by 4 PM today you must notify:

- (1) The Court by calling **(408) 808-6856**, and
- (2) The other side by phone or email that you will appear at the hearing to contest the tentative.

If you fail to notify the court and opposing side by 4 PM then no oral argument will be heard and the tentative ruling becomes the final ruling. (C.R.C. 3.1308(a)(1) & Local Rule 8.E.)

APPEARANCES

The Court encourages in-person appearances for all matters.

The Court discourages remote appearances.

The Court forbids phone-only appearances.

If, despite the above clear guidance, you still elect to appear remotely in Department 16 then you must appear by video using our Court's Unicorn Digital Courtroom ("UDC") system. If for whatever reason you do not like using UDC, *then come to D16 in person.*

To use UDC, click or copy and paste this link into your internet browser & scroll to Department 16: https://www.scsccourt.org/general_info/ra_teams/video_hearings_teams.shtml
When using UDC you must *separately register for each case* in which you appear remotely. If you find UDC too cumbersome, *then come to D16 in person.*

Proposed Orders filed by counsel after the hearing must include the Judicial Council Form EFS-020 Proposed Order Cover Sheet.

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 1			
9:01 2			
9:01 3			
9:01 4			
9:01 5			

9:00 <u>1</u>	24CV448840	<i>Skanska-Shimmick-Herzog</i> <i>v.</i> <i>LAN/T.Y. Lin, et al.</i>	Order CONTINUING for one week Plaintiff's Motion to Strike Portions of Defendant's Motion to Compel Further Responses Plaintiff Skanska-Shimmick-Herzog ("Plaintiff") brings this Motion to Strike certain materials—submitted with Defendant LAN/T.Y. Lin's Motion to Compel Further Responses that is noticed for hearing on July 24, 2026 (the "Motion to Compel")—on the ground that the disputed materials are privileged or protected from disclosure by mediation confidentiality under California Evidence Code sections 1119 and 1126. But as <i>the</i> central issue in the July 24, 2026 Hearing on the Motion to Compel is whether these disputed materials are protected by mediation confidentiality, it makes practical and logical sense for the Court to decide this issue once by deciding both these Motions on the same date on July 24, 2026. Simply put, as resolution of this Motion to Strike and the Motion to Compel are inextricably entwined in the issue of whether disputed documents are privileged, they should be heard and resolved at the same time as a matter of judicial efficiency, logic, and the Court's inherent authority to manage its files. Accordingly, the Court hereby CONTINUES this Motion to Strike for one week to July 24, 2026 at 9:00 AM in Department 16. The Court further notes that because this Continuance of this Motion to Strike is for only one week, any prejudice to Plaintiff caused by this one-week delay is <i>de minimis</i>. SO ORDERED.
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9:00 <u>2</u>	24CV448840	<i>Skanska-Shimmick-Herzog</i> <i>v.</i> <i>LAN/T.Y. Lin, et al.</i>	Order on Cross-Defendant Anil Verma Associates, Inc.’s Motion for Leave to file a Cross-Complaint against Alliance Engineering Consulting, Inc. <i>See</i> Line 2 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 <u>3</u>	22CV408177	<i>John Roe 1, et al.</i> <i>v.</i> <i>Mountain View Whisman School District, et al.</i>	Order on Defendant Santa Clara Unified School District (“SCUSD”)’s Motion for Summary Judgment or, in the alternative, for Summary Adjudication <i>See</i> Line 3 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 <u>4</u>	25CV467427	<i>Fresko Meat Distributions, Inc.</i> <i>v.</i> <i>Rigoberto Sanchez, Jr., et al.</i>	Order on Plaintiff’s Motion to Compel Further Responses for Production of Documents from Defendant and for Sanctions <i>See</i> Line 4 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.

9:00 5	25CV467427	<i>Fresko Meat Distributions, Inc.</i> <i>v.</i> <i>Rigoberto Sanchez, Jr., et al.</i>	Order on Plaintiff's Motion to Compel Inspection of Electronic Devices and Cloud Storage Devices and for Sanctions <i>See Line 5 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 6	23CV413334	<i>Muhammad Khan</i> <i>v.</i> <i>Bay Area Criminal Lawyers, PC, et al.</i>	Order on Plaintiff's Motion for Leave to file First Amended Complaint <i>See Line 6 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 7			
9:00 8			
9:00 9			
9:00 10			
9:00 11			
9:00 12			
9:00 13			
9:00 14			

9:00 <u>15</u>			
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Line 1

Case Name: *Skanska-Shimmick-Herzog v. LAN/T.Y. Lin, et al.*

Case No.: 24CV448840

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

*See Order above. (The Court hereby **CONTINUES** this Motion to Strike for one week to July 24, 2026 at 9:00 AM in Department 16.)*

Line 2

Case Name: *Skanska-Shimmick-Herzog v. LAN/T.Y. Lin, et al.*

Case No.: 24CV448840

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Cross-Defendant Anil Verma Associates, Inc. (“AVA”) moves under Code of Civil Procedure Sections 428.10 and 428.50 *et seq.* for leave to file a permissive Cross-Complaint against Alliance Engineering Consulting, Inc. (“AEC”) on the grounds that AVA recently learned through discovery and communications with other parties of its causes of action contained in the proposed Cross-Complaint, which seeks affirmative relief on indemnity claims from a third party, AEC, who is not currently a party to this litigation. Notice of Motion (the “Motion”) at 2:1-10 (filed: April 21, 2026).

The Motion came on for hearing on July 17, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

As AVA’s Motion for Leave to File Cross-Complaint points out, this matter “involves a dizzying array and large volume of highly technical design professional construction claims.” (Motion at 4:24-25.) The Complaint which initiated the instant action was filed on October 4, 2024. In its First Amended Complaint (“FAC”), filed March 14, 2025, plaintiff Skanska-Shimmick-Herzog (“SSH”) asserts causes of action for negligence, breach of contract, and indemnity against Defendants Lockwood Andrews Newnam, Inc. (“LAN”), T.Y. Lin International, LAN/T.Y. Lin, and Does 1-30, inclusive.

This civil action arises from parties’ work on the Silicon Valley Berryessa Extension Project (“the Project”) for the Santa Clara Valley Transportation Authority (“VTA”). (FAC, ¶¶ 8-13.) In 2011, VTA hired SSH to be the design builder on the Project. (FAC, ¶¶ 10, 14.) In 2012, SSH entered into a subcontract with LAN and T.Y. Lin International for project design. (FAC, ¶¶ 11, 15.) SSH and Defendants “were involved in a prior lawsuit related to design errors and omission arising out of the project that damaged SSH.” (FAC, ¶ 17.) In March 2019, SSH and Defendants entered a settlement agreement that exempted some claims from the agreement. (FAC, ¶18.) In October 2019, SSH filed a complaint against VTA for “unpaid change orders and incentive payments on the project.” (FAC, ¶ 19.) VTA filed a cross-complaint against SSH. (FAC, ¶¶ 20, 21.) VTA and SSH settled in 2023. (FAC, ¶ 30.)

Neither Plaintiff’s Original Complaint nor the FAC named AVA as a defendant. AVA was not a party to this litigation until LAN filed a Cross-Complaint against AVA on December 8,

2024. Cross-Defendant AVA now seeks leave to file a permissive Cross-Complaint against yet another new party, AEC. AVA's motion is opposed and AVA filed a reply.

Analysis of the Motion

A party against whom a cause of action has been asserted in a Complaint may file a Cross-Complaint against another person alleged to be liable if the cause of action asserted in the Cross-Complaint arises out of the same transaction or occurrence as the cause of action in the original complaint. (Code Civ. Proc., § 428.10, subd. (b).) Leave to file a Cross-Complaint may be granted in the interest of justice at any time during the course of an action. (Code Civ. Proc., § 428.50, subd. (c).) Granting or denying a motion for leave to file a cross-complaint is “ordinarily a matter within the sound discretion of the trial court.” (*Orient Handel v. United States Fidelity and Guaranty Company* (1987) 192 Cal.App.3d 684, 701.)

In support of its Motion, AVA argues that “the specific claims being made against AVA appear wholly based on the scope of work performed by AVA’s electrical engineering consultant on the Project, AEC[.]” (Motion, p. 3:20-22.) AVA further argues that AEC’s relevance to the instant action was only discovered after “formal and informal discovery with other litigants” and after “additional information [was] made available to [AVA] in connection with the March 3, 2026, mediation in this matter.” (Motion, pp. 5:12-13, 3:18-22.)

In its Opposition to Motion for Leave to File Cross-Complaint (“Opposition”), SSH argues that AVA has unduly delayed in seeking to file a Cross-Complaint, because AVA “has always known who AEC was, what AEC was retained to do, and that AEC performed wayside electrical engineering services within AVA’s own Project scope.” (Opposition, p. 2:24-25.) SSH further argues that AVA has been on notice since LAN named AVA as a Cross-Defendant in December 2024 that “AVA’s entire scope [of work on the Project], including the work of AVA’s own subconsultants” would be at issue in this litigation. (Opposition, p. 2:25-28.) Additionally, SSH states that adding a Cross-Defendant now will necessitate additional discovery, motion practice, and expert work, resulting in prejudice to SSH. (Opposition, p. 2:24-27, 2:16-19.)

AVA admits in its Motion, as it must, that the Cross Complaint it seeks to file now is permissive, *not* compulsory. (Motion, p. 6:12-13.)

And in considering whether the Court should exercise its discretion to allow this permissive pleading to be filed now, the timing of this Motion matters. Trial rapidly approaches. As the Court made clear on June 22, 2026, in its Order Continuing Trial (*for the last time*): “All parties and all counsel are put on Notice that there will be no further continuance or delay of the January 25, 2027 Trial.” (Order Continuing Trial, ¶ 6.) So the Court now finds and rules that injecting a new party and new set of claims into an already complicated matter six months before trial is *not* in the interest of justice and judicial efficiency, particularly where AVA does not argue that it is at risk of forfeiture or waiver of claims against AEC if leave to file a permissive Cross-Complaint is denied.

Given that (1) AVA is free to bring indemnity claims against AEC outside this civil action and (2) this Court has been clear that it will not tolerate further delay in this matter, the Motion for Leave to file a permissive Cross-Complaint is **DENIED**.

Conclusion and Order

Accordingly, the Motion of Cross-Defendant Anil Verma Associates, Inc. under Code of Civil Procedure Sections 428.10 and 428.50 *et seq.* for leave to file a permissive Cross-Complaint against Alliance Engineering Consulting, Inc. is **DENIED**.

SO ORDERED.

Date: July 17, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 3

Case Name: *John Roe 1, et al. v. Mountain View Whisman School District, et al.*

Case No.: 22CV408177

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Santa Clara Valley Unified School District (“SCUSD”) moves under Code of Civil Procedure Section 437c(f) for Summary Judgment or, in the alternative, Summary Adjudication in its favor and against Plaintiffs regarding claims in Plaintiffs’ Third Amended Complaint (“TAC”) as follows:

Issue No. 1: Plaintiffs’ claims fail as a matter of law because there is no vicarious liability for SCUSD because SCUSD did not employ Defendant Roger Ray Murray (“Murray”).

Issue No. 2: Plaintiffs cannot recover under a theory of negligence because there is no evidence that SCUSD knew or should have known of Murray’s propensity to commit sexual abuse.

Issue No. 3: SCUSD cannot be liable for a violation of the Child Abuse and Neglect Reporting Act (Pen. Code §§ 11164 *et seq.*)(“CANRA”) as a matter of law because all conduct occurred prior to enactment of CANRA.

Issue No. 4: Plaintiffs’ Fourth Cause of Action for failure to warn, train, or educate Plaintiffs fails as a matter of law because SCUSD did not have a statutory duty to warn Plaintiffs on the risk of sexual abuse by third parties and how to avoid the risk.

Issue No. 5: SCUSD has immunity for conduct which occurred off campus after school hours.

Notice of Motion (the “Motion”) at 1:25—2:13 (filed: Sept. 24, 2025).

The Motion is made on the grounds that there is no triable issue of material fact as a matter of law. *Id.* at 2:14-15.

The Motion came on for hearing on July 17, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

According to the Third Amended Complaint, in the early 1970's, when Plaintiff Roe 2 was about the age of 12 or 13, he was sexually assaulted by Defendant McCray at Defendant Murray's apartment. Defendant Murray was the school photographer at Pomeroy Elementary school and Curtis Junior High School of SCUSD. McCray presented himself as the sex education teacher at Graham Junior High School of Mountain View Whisman School ("MVWSD"). McCray was the friend and co-conspirator of Murray in a child sex and photography ring. (TAC ¶ 7)

Murray was arrested and charged with felony violation of PC 288 (lewd or lascivious acts with children) and PC 272 (contributing to the delinquency of a minor); to which he pled guilty and went to jail. Murray is a registered sex offender. (TAC ¶ 7)

In 1973 or 1974, when Plaintiff Roe 3 was about age 13, he was sexually assaulted by Defendant Murray. Plaintiff attended Pomeroy Elementary school, Curtis Junior HS or Curtis Intermediate, located within SCUSD. Murray would take John Roe 3 to nude beaches, churches, bands/concerts, and weddings. Plaintiff also photographed weddings with Murray as his assistant. During this time, Murray took Plaintiff to McCray's house where Plaintiff was violently sexually assaulted by a gang of men. (TAC ¶ 8)

In about 1974, when Plaintiff Roe 5 was about age 13, he was sexually assaulted by Defendants Murray and McCray. Plaintiff attended Pomeroy Elementary school and Curtis Junior HS of SCUSD. Murray used his position as a school photographer at the schools to groom and recruit his child victims including Roe 5. (TAC ¶ 10)

Principal Robert J. Smith, and/or one or more of the SCUSD's other teachers/aids/assistants and principals and/or administrators at Pomeroy Elementary school knew or should have known of Murray's dangerous propensities but nevertheless hired him, failed to properly supervise him and the students, and failed to spot and respond to obvious red flags. (TAC ¶ 10)

Plaintiffs initiated this action on December 5, 2022, and amended their complaint on December 30, 2022, March 17, 2023, and September 1, 2023, alleging causes of action for: (1) negligence, (2) negligent supervision, (3) negligent hiring and/or retention, (4) negligent failure to warn, train or educate, (5) intentional infliction of emotional distress, (6) sexual battery (civil code § 1708.5), (7) sexual assault, (8) gender violence (civil code §52.4), (9) violation of penal code §§266j, 286, 287, 288a, 289(h), (i), (j), 311.4 and 647.6, (10) violation of civil rights (civil code §§ 51.7, 52 and 52.1), (11) human trafficking (civil code §52.5)

II. Legal Standard on Motion for Summary Judgment or Summary Adjudication

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine

whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.) “If the plaintiff cannot do so, summary judgment should be granted.” (*Avivi v. Centro Medico Urgente Med. Ctr.* (2008) 159 Cal.App.4th 463, 467.)

“Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.) “[T]he court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection) . . . in the light most favorable to the party opposing summary judgment.” (Avivi, supra, 159 Cal.App.4th at p. 467; see also Code Civ. Proc., § 437c, subd. (c).)

III. Analysis of the Motion

A. Negligence & Vicarious Liability

“The elements of a cause of action for negligence are well established. They are (a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.” (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917 [internal quotations omitted].)

The elements of a cause of action for negligent hiring, retention, or supervision are: (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (*Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 836-837; *Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054, 1055.)

Government Code section 815.2, subd. (a) provides: “A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” Similarly, Government Code section 815.4 provides: “A public entity is liable for injury proximately caused by a tortious act or omission of an independent contractor of the public

entity to the same extent that the public entity would be subject to such liability if it were a private person. Nothing in this section subjects a public entity to liability for the act or omission of an independent contractor if the public entity would not have been liable for the injury had the act or omission been that of an employee of the public entity.”

Government Code section 815.6 provides: “Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.” (Gov. Code, § 815.6; *San Mateo Union High School Dist. v. County of San Mateo* (2013) 213 Cal.App.4th 418, 428.)

In other words, a school district and its personnel owe students the duty to use reasonable measures to protect them from foreseeable injury at the hands of third parties acting negligently or intentionally, including injuries to a student resulting from a teacher's sexual assault. (See, *John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438, 441, 447; *Roe v. Hesperia Unified School Dist.* (2022) 85 Cal.App.5th 13, 25.)

Plaintiffs allege that SCUSD stood in loco parentis and was duty bound to take reasonable steps and implement reasonable safeguards to protect them from the foreseeable injuries that were caused by the individual perpetrator Defendants. Allegedly, SCUSD also had a statutory duty under Penal Code section 11166 to report known or suspected incidents of sexual abuse of minors to a child protective agency. SCUSD breached these duties by failing to adequately supervise students including Plaintiffs; failing to implement policies and practices to protect against sexual abuse of children; failing to follow policies and practices to protect against sexual abuse of children; failing to enforce rules and regulations to protect against sexual abuse of children; failing to train its employees to recognize potential red flags of abuse; failed to report the abuse to law enforcement agency of a county welfare department. (TAC ¶¶ 1, 60, 63 - 66.)

SCUSD contends in this Motion that as a matter of law it cannot be held *vicariously liable* for the negligence of administrators, or supervisors in hiring, supervising, and retaining Murray *because Murray he was not an employee of SCUSD*, and that there is no evidence SCUSD knew or should have known of Murray's propensity to sexually abuse children.

In support of its position, SCUSD presents evidence showing:

- In 1973 and 1974, it utilized freelance photographers or photography companies to take student portraits for the yearbook, there are no personnel, employment, or payroll records for Murray, and he does not appear in the yearbook. (Simpson Decl. ¶¶ 5-8)
- Roe 3 described Murray as a freelance photographer who photographed weddings and was working for a company that Curtis Junior High School used for student portrait photos. (Exhibit B, Excerpts from Roe 3 Deposition, pp. 79: 13-19, 96:12-97:1, 119:6-22; 120:1-24)

- Roe 2 worked for Murray as his assistant and that Murray photographed mostly weddings. (Exhibit A, Excerpts from Roe 2 Deposition, pp. 71:7-20, 71:24-72:6.)
- Murray deliberately kept himself "safe and clear" during school hours, avoiding attention. (Exhibit B, Excerpts from Roe 3 Deposition, 140:2-10)
- Murray did not engage in inappropriate sexual conduct with Plaintiffs on school grounds or during school hours. (Exhibit B, Excerpts from Roe 3 Deposition pp. 76:11-13, 81:7-11, 82:4-20, 83:7-17, 91:1-7, 102:7-25, 103:5-17, 104:10-16, 116:17 117:21, 122:22-123:19, 124:22-125:4, 126:5-21, 132:8 12, 139:25-140:10; Exhibit A, Excerpts from Roe 2 Deposition, pp. 54:12-56:2, 60:16-61:1, 75:7 25, 91:16-92:6, 93:10-25.)
- None of the Plaintiffs disclosed any of the inappropriate conduct to any adult until after Murray was arrested. (Exhibit B, Excerpts from Roe 3 Deposition pp. 104:18-23, 132:25-133:13, 140:11-141:8, 156:12-18, 163:14-24; Excerpts from Roe 2 Deposition, pp. 90:25-91:5, 97:4-7.)

Contrary to SCUSD's argument, this evidence does not resolve classification of Murray's status. This evidence raises questions regarding Murray's status as an independent contractor and the degree of control SCUSD may have exercised over his freelance photography job at the school. Critical facts remain undisclosed. SCUSD does not address: (1) whether it contracted with a photography company that employed Murray; (2) what control it exercised over when, where, and how school portraits were taken; (3) whether SCUSD provided space, equipment, or supervision; (4) how frequently Murray was on campus; (5) whether Murray wore identification or was introduced to students as affiliated with the school. These facts are material to determine whether Murray was an employee, an independent contractor, or an employee of a company with which SCUSD contracted. The classification of Murray's status is a mixed question of law and fact that typically cannot be resolved on summary judgment when material facts remain in dispute.

Therefore, SCUSD has not met its burden of establishing as a matter of law that no employment relationship with Murray existed. The Court finds that a reasonable trier of fact could infer from Murray's repeated on-campus presence, his role taking official school portraits, and the school's provision of space for photography that SCUSD exercised sufficient control to create an employment or agency relationship, or at minimum, a relationship giving rise to supervisory duties.

Then the question becomes whether SCUSD knew or should have known that Murray posed a foreseeable risk to students but nevertheless retained him and failed to properly supervise him even if he was an independent contractor. California law does not require actual knowledge of prior abuse or a specific propensity. (*Doe v. Lawndale Elementary School Dist.* (2021) 72 Cal.App.5th 113, 119.) School districts have a duty to take reasonable measures to identify and respond to potential misconduct, even before a district knows a specific employee has previously engaged in sexual misconduct. (*Id* at 135.)

SCUSD emphasizes: (1) Roe 3's testimony that Murray deliberately kept himself "safe and clear" during school hours, avoiding attention, and (2) undisputed facts show Murray did not engage in sexual conduct with Plaintiffs on school's grounds and during school hours. (Exhibit B, Excerpts from Roe 3 Deposition, 140:2-10, SSUMF No. 8, 9)

But several facts create triable issues:

1. Murray had repeated unsupervised access to students. He photographed students in the cafeteria, approached students on the field after school, and interacted with students on campus on multiple occasions. Roe 3 testified he saw Murray on campus three to five times after school or during summer, and Murray would come on the campus and offer us marijuana, invite us over. (Exhibit B, Excerpts from Roe 3 Deposition pp. 83:12-17, 102:7-25, 103:5-24, 104:5-16) These interactions occurred on school grounds, visible to anyone present.
2. Murray had access to students alone. The portrait sessions occurred in the cafeteria with the whole class present (SSUMF No. 2), but the facts do not establish that a teacher or administrator was continuously present to supervise. Murray's presence on the field after school hours when students were hanging out occurred without adult supervision.
3. California courts have recognized that sexual abuse by adults in positions of authority—like Murray—over children in school settings is reasonably foreseeable, even where the organization had no knowledge that the particular individual had previously sexually or physically abused anyone or had a propensity.
4. Plaintiffs allege that SCUSD failed to implement adequate systems for investigating and supervising personnel to prevent sexual grooming and abuse. While SCUSD argues it had no notice of Murray's conduct, the absence of policies, training, and supervision may itself constitute negligence when harm was foreseeable. SCUSD has not presented evidence establishing that it conducted any background investigation of Murray, implemented policies governing independent contractors' access to students, trained staff to recognize grooming behavior, or supervised Murray's interactions with students. These omissions may constitute breach of duty when an adult has repeated unsupervised access to minors.

Accordingly, the Court finds that the evidence presented here, viewed in the light most favorable to Plaintiffs, raises triable issues of material fact regarding whether SCUSD breached its duty by: (1) failing to adequately supervise an adult with access to students; (2) failing to implement policies to prevent abuse; (3) allowing unsupervised contact between an adult and students after school hours on campus; and (4) failing to investigate or monitor adults regularly present on campus. Whether these omissions constituted negligence is a question for the jury.

As these triable issues of material fact exist, SCUSD's motion for Summary Adjudication of Plaintiff's claims on these grounds is DENIED. More specifically:

- Regarding **Issue No. 1** in SCUSD's Motion for Summary Adjudication that "Plaintiffs' claims fail as a matter of law because there is no vicarious liability for SCUSD because SCUSD did not employ Defendant Roger Ray Murray," this Motion for Summary Adjudication in SCUSD's favor is **DENIED**; and
- Regarding **Issue No. 2** in SCUSD's Motion for Summary Adjudication that "Plaintiffs cannot recover under a theory of negligence because there is no evidence that SCUSD knew or should have known of Murray's propensity to commit sexual abuse," this Motion for Summary Adjudication in SCUSD's favor is **DENIED**.

B. Negligent Failure to Warn, Train or Educate

SCUSD argues it had no duty to warn, train, or educate students about how to avoid sexual abuse by non-employees, and that no statute imposes such a duty on public school districts. SCUSD contends that public entities are immune from common law tort liability, and the duty to warn is a common law doctrine without statutory support. (Motion at 8:25-9:16)

In *Chevlin v. Los Angeles Community College Dist.* (1989) 212 Cal. App. 3d 382, 389-90, the court held that the law refuses to hold a public school system liable to a student who claims she was inadequately educated. Similarly, the court in *Campaign for Quality Education v. State of California* (2016) 246 Cal. App. 4th 896, 903, 915, held that questions of educational quality are best left to the Legislature, and should not be adjudicated in the courts.

Accordingly, SCUSD's motion for summary adjudication of Plaintiff's claim for negligent failure to warn, train or educate students is GRANTED.

More specifically, regarding **Issue No. 4** in SCUSD's Motion for Summary Adjudication that "Plaintiffs' Fourth Cause of Action for failure to warn, train, or educate Plaintiffs fails as a matter of law because SCUSD did not have a statutory duty to warn Plaintiffs on the risk of sexual abuse by third parties and how to avoid the risk," this Motion for Summary Adjudication in SCUSD's favor is **GRANTED**.

C. Negligence Per Se – Breach of Duty to Report Abuse under the Child Abuse Neglect Reporting Act ("CANRA")

"CANRA requires mandated reporters, including teachers and other specified school employees, to make a report to a law enforcement agency or a county welfare department whenever the mandated reporter, in [the mandated reporter's] professional capacity or within the scope of [the mandated reporter's] employment, has knowledge of or observes a child whom the mandated reporter knows or reasonably suspects has been the victim of child abuse or neglect. . . . Failure to make the required report constitutes a misdemeanor.

(Pen. Code, § 11166, subd. (c).) In addition, a failure to make such a report may give rise to a claim of negligence per se when a breach of the duty to report causes injury.” (*Roe*, supra, 85 Cal.App.5th at 31-32, internal citations and quotations omitted.)

SCUSD argues that it cannot be held liable for violating CANRA because the statute was enacted in 1980, six years after the alleged conduct. The Court agrees.

It is well established and widely recognized legal principle that statutory enactments apply *prospectively* in the absence of a clear legislative intent to the contrary. (*Evangelatos v. Superior Court* (1988) 44 Cal.3d 1188, 1193-1194.) So because the alleged abuse occurred in 1973-74 and CANRA was not enacted until 1980, SCUSD could not have violated a duty that did not yet exist.

Therefore, SCUSD’s motion for summary adjudication of Plaintiff’s CANRA-based negligence per se claim is GRANTED.

More specifically, regarding **Issue No. 3** in SCUSD’s Motion for Summary Adjudication that “SCUSD cannot be liable for a violation of the Child Abuse and Neglect Reporting Act (Pen. Code §§ 11164 *et seq.*) (“CANRA”) as a matter of law because all conduct occurred prior to enactment of CANRA,” this Motion for Summary Adjudication in SCUSD’s favor is **GRANTED**.

D. Immunity Under Education Code Section 44808

Education Code § 44808, provides:

Notwithstanding any other provision of this code, no school district , city or county board of education, county superintendent of schools, or any officer or employee of such district or board shall be responsible or in any way liable for the conduct or safety of any pupil of the public schools at any time when such pupil is not on school property, unless such district, board, or person has undertaken to provide transportation for such pupil to and from the school premises, has undertaken a school-sponsored activity off the premises of such school, has otherwise specifically assumed such responsibility or liability or has failed to exercise reasonable care under the circumstances.

In the event of such a specific undertaking, the district, board, or person shall be liable or responsible for the conduct or safety of any pupil only while such pupil is or should be under the immediate and direct supervision of an employee of such district or board.

(Education Code § 44808.)

SCUSD argues that it is immune because (1) there is no dispute that all sexual conduct and pornographic photography occurred off campus during non-school hours, (2) SCUSD did not provide any Plaintiff with transportation to Murray’s condo, (3) visits to

Murray's condo were not school sponsored activities. Rather all the alleged conduct occurred after school hours, during summer months, at Murray's condo or another off-campus location. (Motion 9:18-10:13)

But immunity under section 44808 does not shield SCUSD from liability for negligence that occurred on campus and during school functions. Plaintiffs' claims are not solely based on SCUSD's failure to supervise students at Murray's condo. Rather, Plaintiffs allege SCUSD negligently: (1) failed to supervise Murray's access to students on campus; (2) allowed unsupervised contact between Murray and students on school grounds; (3) failed to investigate or monitor Murray despite his regular presence on campus; and (4) failed to implement policies to prevent grooming and abuse. (TAC ¶¶ 78, 81, 83, 84, 92, 97) These alleged breaches occurred on school property and during school-related activities (portrait sessions, after-school hours on campus).

The fact that the ultimate abuse occurred off campus does not immunize SCUSD from liability for on-campus negligence that proximately caused the off-campus harm. Section 44808 addresses where the injury occurred, not where the negligence occurred.

Additionally, Murray's access to students arose from his role of taking school portraits—an activity directly connected to school operations. Whether this constitutes a "school-sponsored activity" sufficient to invoke an exception to section 44808, or whether SCUSD's on-campus negligence falls outside the immunity altogether, presents triable issues of material fact.

Therefore, SCUSD's motion for summary judgment, or in the alternative, summary adjudication on this ground that it is immune is **DENIED**.

More specifically, regarding **Issue No. 5** in SCUSD's Motion for Summary Adjudication that "SCUSD has immunity for conduct which occurred off campus after school hours," this Motion for Summary Adjudication in SCUSD's favor is **DENIED**.

IV. Conclusion & Order

Accordingly, SCUSD's Motion for Summary Adjudication is **GRANTED IN PART and DENIED IN PART** as follows:

Regarding **Issue No. 1** in SCUSD's Motion for Summary Adjudication that "Plaintiffs' claims fail as a matter of law because there is no vicarious liability for SCUSD because SCUSD did not employ Defendant Roger Ray Murray," this Motion for Summary Adjudication in SCUSD's favor is **DENIED**.

Regarding **Issue No. 2** in SCUSD's Motion for Summary Adjudication that "Plaintiffs cannot recover under a theory of negligence because there is no evidence that SCUSD knew or should have known of Murray's propensity to commit sexual abuse," this Motion for Summary Adjudication in SCUSD's favor is **DENIED**.

Regarding **Issue No. 3** in SCUSD's Motion for Summary Adjudication that "SCUSD cannot be liable for a violation of the Child Abuse and Neglect Reporting Act (Pen. Code §§ 11164 *et seq.*)(“CANRA”) as a matter of law because all conduct occurred prior to enactment of CANRA,” this Motion for Summary Adjudication in SCUSD's favor is **GRANTED**.

Regarding **Issue No. 4** in SCUSD's Motion for Summary Adjudication that “Plaintiffs’ Fourth Cause of Action for failure to warn, train, or educate Plaintiffs fails as a matter of law because SCUSD did not have a statutory duty to warn Plaintiffs on the risk of sexual abuse by third parties and how to avoid the risk,” this Motion for Summary Adjudication in SCUSD's favor is **GRANTED**.

Regarding **Issue No. 5** in SCUSD's Motion for Summary Adjudication that “SCUSD has immunity for conduct which occurred off campus after school hours,” this Motion for Summary Adjudication in SCUSD's favor is **DENIED**.

Moreover, as SCUSD's Motion for Summary Adjudication is now DENIED IN PART for the reasons explained above, SCUSD's Motion for Summary Judgment is **DENIED** as well.

SO ORDERED.

Date: July 17, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 4

Case Name: *Fresko Meat Distributions, Inc. v. Rigoberto Sanchez, Jr., et al.*

Case No.: 25CV467427

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff and Cross-Defendant Fresko Meat Distributions, Inc. (“Fresko”) moves to compel Defendant Rigoberto Sanchez, Jr., to:

1. Provide further responses to Requests for Production Nos. (“RFPs”) 1, 3, 5, 6, 7, 8, 10, 12, 13, and 14 through 48;
2. Produce documents responsive to RFPs 1, 3, 5, 6, 7, 8, 10, 12, 13, and 14 through 48; and
3. Pay monetary sanctions to Fresko in the amount of \$7,2600.00 for Fresko’s attorneys’ fees and costs incurred for this Motion.

Notice of Motion (the “Motion”) at 1:4-12 (filed: Dec. 18, 2025).

The Motion came on for hearing on July 17, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

This Motion is straightforward.

On September 4, 2025, Fresko served Mr. Sanchez with these RFPs. Declaration of Daniel J. Muller In Support of Motion (“Muller Decl.”) at ¶ 2 & Exhibit A (the RFPs) thereto.

Mr. Sanchez had a clear duty to provide Code-Compliant responses to these RFPs. To be Code Compliant, Mr. Sanchez’s responses to the RFPs must comply with C.C.P. §§ 2031.210-2031.230 by stating:

- (a) Mr. Sanchez will comply with the RFP—and then produce the documents and items requested;
- (b) Mr. Sanchez is unable to comply with the RFP because the requested documents and items have never existed; or
- (c) after diligent search and reasonable inquiry, Plaintiff is unable to comply because the requested documents and items no longer exist or are no longer in his possession, custody, or control.

C.C.P. §§ 2031.210, 2031.220, 2031.230.

To determine whether Mr. Sanchez's responses were Code-Compliant, the Court has spent time carefully reviewing each and every one of Mr. Sanchez's responses to RFPs Nos. 1, 3, 5, 6, 7, 8, 10, 12, 13, and 14 through 48, which are set forth in their entirety in Plaintiff's Separate Statement In Support of this Motion. Having reviewed all of Mr. Sanchez's responses, the Court finds that *none* of them are Code-Compliant; they are all evasive and improper.

Throughout his responses to these RFPs, Mr. Sanchez evasively and improperly states that he does not have possession, custody, or control of the requested documents "personally" or in his "individual capacity." But he and his attorney Michael S. Warda, who prepared these evasive discovery responses, know well that as the Chief Executive Officer and Chief Financial Officer of Defendant DM Food Service Corp., Mr. Sanchez has control over, can produce, and is required to produce the discovery documents requested by these RFPs that his company has possession, custody, and control of.

And lest there be the slightest doubt, the Court now finds and rules that RFPs Nos. 1, 3, 5, 6, 7, 8, 10, 12, 13, and 14 through 48 all call for information that is relevant and that is reasonably likely to lead to the discovery of admissible information—and thus is well within the scope of discoverable information that Fresko had the right to request through these RFPs *and* which Mr. Sanchez has the clear duty to provide Code-Compliant responses to under C.C.P. Sections 2031.210, 2031.220, 2031.230

And Mr. Sanchez's confidentiality objections that he has not produced the discovery documents requested by these RFPs because a confidentiality Protective Order is not in place is as evasive and misleading as his argument that as CEO he does not have control over the documents in the possession, custody, or control of his company Defendant DM Food Service Corp. For back on October 17, 2025, counsel for Fresko sent Mr. Sanchez's lawyer a proposed stipulated protective order based on the Court's model confidentiality order. Muller Decl. at ¶¶ 5-7 and Exhibit E (Protective Order) thereto. But Mr. Sanchez sat on it and never responded, *id.*, yet now has the temerity to object to production based on the *lack* of a confidentiality order.

Having carefully reviewed the proposed confidentiality Protective Order filed as Exhibit E to the Muller Declaration, the Court finds it to be a well-crafted and appropriate Protective Order with confidentiality designations and use restrictions subject to review and enforcement by the Court. Hence, the Court endorsed, approved, signed, and filed this Protective Order on July 14, 2026. *See* Order (filed: July 14, 2026).

As this Signed Protective Order is now filed and in full force and effect in this case, Mr. Sanchez's objections based on confidentiality are all **OVERRULED**. He can, will, and is **ORDERED** to produce responsive documents to RFPs Nos 1, 3, 5, 6, 7, 8, 10, 12, 13, and 14 through 48; he's free to designate them, as appropriate, as Confidential under this Protective Order.

Accordingly, within 30 days of today, the Court ORDERS Mr. Sanchez to:

- 1. Provide further responses that are Code Compliant to RFPs Nos. 1, 3, 5, 6, 7, 8, 10, 12, 13, and 14 through 48, and**
- 2. Produce documents responsive to RFPs Nos. 1, 3, 5, 6, 7, 8, 10, 12, 13, and 14 through 48.**

As for Mr. Sanchez's argument that the Motion is "moot" because over 10 months after these RFPs were propounded on *September 4, 2025*, he decided to serve supplemental responses to them on the same day he filed his Opposition brief on *July 6, 2026*, Mr. Sanchez's argument fails on multiple levels.

First, this Motion is not moot because Mr. Sanchez "has yet to produce a single document" (Reply at 1:13) responsive to these RFPs in violation of clear duty to do so under C.C.P. §§ 2031.210, 2031.220, 2031.230.

Second, by failing to produce any responsive documents to these RFPs, Mr. Sanchez has not "cured" his deficient discovery responses to these RFPs.

Third, because Mr. Sanchez failed to provide Code-Compliant Responses by the date they were due under the Code of Civil Procedure on October 7, 2025, Fresko was fully justified in filing this Motion when it did on December 18, 2025.

Fourth, regarding the monetary sanction sought by Fresko for its attorneys' costs and fees for this Motion, the fact that Mr. Sanchez made a supplemental discovery on July 6, 2026—nearly seven months after the Motion was filed—does not divest the Court of authority and discretion to award a monetary sanction here against Mr. Sanchez for the amount that Fresko reasonably incurred for bringing this Motion to compel Mr. Sanchez to provide further responses and produce responsive documents. *See* Cal. Rules of Court, Rule 3.1348(a) ("The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed."); *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, at 408-409 ("once a party has failed to serve timely [discovery] responses, the trial court has the authority to hear a propounding party's motion to compel responses . . . regardless of whether a party [later] serves an untimely response[,] and going on to cite and quote Rule 3.1030(a), which in 2009 was renumbered as Rule 3.1348(a) *supra*, that the court may award sanctions even though the requested discovery responses were served after the motion was filed.)

In light of the plain text of Rule 3.1348(a), even though Mr. Sanchez argues as if he made a cure serving supplemental responses long *after* this December 18, 2025 Motion was filed, the Court retains authority and discretion under Code of Civil Procedure Section 2023.030(a) to impose a reasonable sanction against Mr. Sanchez here: "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the *reasonable* expenses, including attorney's fees, incurred by anyone as a result of that conduct." C.C.P. § 2023.030(a) (emphasis added). And, lest there be doubt, the Court reads Section 2023.010(d) to mean that failing to *timely* "respond . . . to an authorized method of

discovery” like RFPs is a “misuse of the discovery process” (C.C.P. § 2023.010(d)) subject to a reasonable sanction under Section 2023.030(a).

Hence, while the Court here may award Fresko a monetary sanction paid by Mr. Sanchez for Fresko’s reasonable attorney’s fees and costs incurred for this Motion to compel, the *amount* of this sanction is within the wide discretion of the Court. Simply put, the Court gets to determine what amount is *reasonable* under these circumstances.

Here, Fresko asks the Court to Order Mr. Sanchez to pay a monetary sanction of \$9,060.00 now, which equals attorneys’ fees of \$9,000.00 (for 15 hours of attorneys’ fees at \$600 per hour), plus costs of \$60.00 for the filing fee for this Motion. Muller Decl. at ¶10 (in initial moving papers, seeking \$7,200 for attorneys’ fees); Reply at 10:1-3 (increasing attorneys’ fees sought by \$1,800 for work done in Reply, i.e., \$1,800 + \$7,200 = \$9,000 in attorneys’ fees total).

In light of prevailing rates in the relevant market, the Court rules that this billable rate sought of \$600.00 per hour is reasonable.

But the number of 15 hours of attorneys work for this straightforward motions to compel Mr. Sanchez to produce further responses to RFPs to make them Code Compliant, including providing responsive documents now, is *unreasonable*. This Motion was straightforward. All Fresko had to do to win it was point out that Fresko properly served these RFPs for relevant, discoverable information (they do); California law requires Mr. Sanchez to provide further responses to these RFPs that are Code Compliant—along with all responsive documents—now (it does); Mr. Sanchez’s objections were all evasive and frivolous (they are) and he failed to provide Code Compliant responses and failed to provide responsive documents to these RFPs (he failed badly).

The only additional point that needed to be addressed in the Reply papers was Mr. Sanchez’s weak “mootness” argument, which as explained above fails for multiple reasons.

These straightforward points reasonably should have taken Fresko’s lawyer **six hours** of attorney time to brief and argue. And the Court will award Fresko **another 2 hours** of attorney time reasonably incurred for the time Fresko’s lawyer had to wade through and analyze the lengthy but utterly unproductive meet and confer correspondence, objections, and opposition papers from Mr. Sanchez’s lawyer regarding this Motion. Accordingly, the Court finds that Fresko’s attorneys should reasonably have spent **eight hours total** to win this Motion to compel.

In addition, the Court awards Fresko as a part of this monetary sanction the \$60.00 filing fee sought by Fresko that the Court finds was a reasonable cost that Fresko occurred for filing this Motion.

So, **the total monetary sanction awarded now is \$4,860.00**, which equals \$4,800.00 in reasonable attorneys’ fees (=8 hours total at \$600.00 per hour) plus \$60.00 in reasonable cost incurred by Fresko’s counsel for this Motion. And Mr. Sanchez will pay Fresko this \$4,860.00 sanction within 30 days of today.

Conclusion & Order

Accordingly, the Motion is **GRANTED** as follows. The Court **ORDERS Mr. Sanchez within 30 days of today to:**

- 1. Provide further responses that are Code Compliant to RFPs Nos. 1, 3, 5, 6, 7, 8, 10, 12, 13, and 14 through 48, *and***
- 2. Produce documents responsive to RFPs Nos. 1, 3, 5, 6, 7, 8, 10, 12, 13, and 14 through 48,**
- 3. Pay Fresko \$4,860.00 as a monetary sanction for Fresko's reasonable attorneys' fees and costs incurred for this Motion.**

Both Mr. Sanchez and his attorney Michael S. Warda are put on **NOTICE** that failure to comply with this **ORDER** within 30 days of today may result in escalating monetary sanctions against *both* Mr. Sanchez and attorney Warda as well as non-monetary sanctions against Mr. Sanchez including issue, evidentiary, and terminating sanctions.

SO ORDERED.

Date: July 17, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 5

Case Name: *Fresko Meat Distributions, Inc. v. Rigoberto Sanchez, Jr., et al.*

Case No.: 25CV467427

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff and Cross-Defendant Fresko Meat Distributions, Inc. (“Fresko”) moves to compel Defendant Rigoberto Sanchez, Jr., to:

1. Provide further responses to Requests for Inspection Nos. 1, 2, 3, and 4;
2. Make responsive devices and cloud storage accounts available; and
3. Pay monetary sanctions to Fresko in the amount of \$3,600.00 for Fresko’s attorneys’ fees and costs incurred for this Motion.

Notice of Motion (the “Motion”) at 1:4-12 (filed: Dec. 18, 2025).

The Motion came on for hearing on July 17, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

On September 4, 2025, Fresko made these four Requests for Inspection on Mr. Sanchez:

INSPECTION REQUEST NO. 1:

Fresko requests to inspect all computers, telephones, smartphones, including all COMPUTER MEDIA devices, which YOU used in connection with YOUR employment at Fresko.

INSPECTION REQUEST NO. 2:

Fresko requests to inspect all computers, telephones, smartphones, including all COMPUTER MEDIA devices, which YOU have used and I or are using in connection with DM Food Service, Corp.

INSPECTION REQUEST NO. 3:

Fresko requests to inspect all ONLINE STORAGE SYSTEMS which YOU used in connection with Fresko.

INSPECTION REQUEST NO. 4:

Fresko requests to inspect all ONLINE STORAGE SYSTEMS which YOU have used or are using in connection with DM Food Service, Corp.

Declaration of Daniel Muller In Support of Motion to Compel Inspection of Electronic Devices (“Muller Decl.”) at ¶ 2 and Exhibit A (Inspection Requests) thereto.

The Court finds and rules that these four Requests for Inspection are narrowly tailored, reasonable, relevant, and reasonably calculated to lead to the discovery of admissible information. They each apply only to devices and storage accounts that were used in connection with Mr. Sanchez's employment at Fresko or his work as Chief Executive Officer and Chief Financial Officer of Defendant DM Food Service, Corp.

Moreover, the Court **ORDERS** that these four Requests for Inspection will be governed by the following inspection protocol—which Fresko's counsel proposed and sent to Mr. Sanchez's lawyer Mr. Warda on October 17, 2025 (Muller Decl. at ¶ 5 and Exhibit E (containing this inspection protocol), **and which the Court now finds is reasonable in all respects and now governs this inspection in this case:**

Protocol For Examination of Electronic Devices

1. Within _____ business days ¹ of the Parties' execution of the Vendor Services Agreement, Mr. Sanchez and DM Food shall provide the identified electronic devices (see Exhibit A) to Vendor so that it can create forensically identical images of the devices that will enable it to perform the Services. After making the images, Vendor shall return the devices to Mr. Sanchez/ DM Food Service.
2. Vendor shall examine the forensic images of the devices and conduct a search of the devices using the Agreed Search Terms (see Exhibit B). The search shall identify files containing the Agreed Search Terms in the following types of files: (a) user created files accessible on the forensic images of the devices; (b) user created files identifiable on the forensic images of the devices; (c) user created files recoverable from the forensic image of the devices; and (d) electronic mail messages and text messages residing on, or accessible from, the devices ("File List"). To the extent possible, for each file, the File List shall provide the file names, fully qualified filepath in UNC format, date modified, type, MD5 hash, and size of files, (to the extent the data is available). The File List shall also include any deleted or modified files that can be identified from the forensic image.
3. Within seven (7) calendar days of receiving the File List, Mr. Sanchez shall identify all files on the File List that do not contain his personal data or constitute privileged attorney-client communications or attorney work product. Upon request and as needed, Vendor shall provide Mr. Sanchez and his counsel with copies of the files so that they can review the contents of particular files for privacy or privilege. Upon completion of the foregoing, Vendor shall make files which do not contain personal data or privileged communications available to

¹ While the number of business days here in this paragraph was left blank in the inspection protocol sent by Fresko to Mr. Sanchez's attorney Warda on October 17, 2025, the Court now **ORDERS** that this shall be done "within 10 business days" unless all parties agree on a different number of days for completion of this discrete task.

counsel for Fresko. The files shall be designated as "confidential" pursuant to the Parties' Stipulated Protective Order.

4. Within seven (7) calendar days of receiving the File List, Mr. Sanchez shall identify all files on the File List that do contain his personal data or that contain privileged communication or attorney work product. Counsel for Mr. Sanchez shall then provide the list of files containing his personal data to counsel for Fresko. If the Parties agree that the files identified by Mr. Sanchez do contain his personal data and do not contain information or data pertinent to the claims or defenses in the litigation, then the files identified by Mr. Sanchez shall not be provided by Vendor to Fresko or its counsel. If the parties disagree about whether the files identified by Mr. Sanchez contain his personal data and / or whether the files are relevant to the claims or defenses in the litigation, counsel for the parties shall meet and confer regarding any such files. If Mr. Sanchez has asserted that a file or files contain his personal data and he objects to the production of a file or files on that basis, and, in the event that the Parties cannot resolve any such objection informally, they agree to submit any such dispute to the Court for it to determine whether and in what manner the file or files shall be provided to Fresko.
5. Files containing privileged communications and/or work product shall be logged and shall not be subject to production absent agreement by the Parties or an order of the Court.
6. The parties reserve all rights to conduct discovery in the Litigation and reserve all objections to the production of evidence including all relevance, privacy, and privilege objections.

Muller Decl., Exhibit E (inspection protocol).

The use of this inspection protocol to govern the four Requests for Inspection vitiates the objections of Mr. Sanchez. These four Requests for Inspection do *not* seek wholesale inspection of his personal devices; rather, under this now-governing inspection protocol they will be conducted by agreed search terms, which will be subject-matter relevant and limited. And if search terms hit upon personal or privileged data, Mr. Sanchez and his counsel may object before such information is seen by Fresko or its counsel.

Regarding Mr. Sanchez's objections based on privacy and confidentiality, those objections are **OVERRULED** as well because the Court on July 14, 2026 signed, entered, and filed the Protective Order that Fresko's counsel reasonably proposed to Mr. Sanchez's lawyer in on October 17, 2025. Muller Decl. at ¶ 5. As that now filed Protective Order governs all discovery in this case, Mr. Sanchez is free to designate information generated from these four Requests for Inspection as Confidential, if warranted, under that Protective Order.

Mr. Sanchez's objection that these four Requests for Discovery are overly burdensome is unfounded, unsupported, and **OVERRULED**.

Moreover, as the inspection protocol above that governs these four Requests for Inspection expressly provides for a privilege screen to ensure a privilege and work-product review before any information is produced to Fresko, Mr. Sanchez's privilege and work-product objections are unfounded and rejected.

As for Mr. Sanchez's newfangled argument that he does not have to comply with these four Requests for Inspection because the devices and accounts sought are not in his "personal" possession because they are devices of the corporate entity DM Food Service—of which he is the CEO and CFO—that argument is rejected as frivolous. As a direct result of his power, authority, and position as CEO and CFO of Defendant DM Food Service, Corp., the Court now finds and rules that he has constructive possession, custody, and control of these devices and accounts. He has the right and power to obtain access to and receive these devices and accounts on demand. So his objection that he can evade compliance with these four Requests for Inspection because the devices and accounts at issue are his company's but not his "personally" is unfounded, unsupported, and **OVERRULED**.

So Mr. Sanchez's "individual capacity" argument fails, as do all the rest of his objections, evasions, and arguments in Opposition.

Accordingly, within 30 days of today, the Court ORDERS Mr. Sanchez to:

- 1. Provide Further Responses to Requests for Inspection Nos. 1, 2, 3, and 4;**
- 2. Make Responsive Devices and Cloud Storage Accounts Available; and**
- 3. Meet and confer, in the presence of his attorney Mr. Warda, with Fresko's counsel regarding agreed search terms.**

The only remaining issue is over appropriate sanctions for this Motion. The Court has broad discretion and authority Code of Civil Procedure Section 2023.030(a) to impose a reasonable sanction against Mr. Sanchez here: "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the *reasonable* expenses, including attorney's fees, incurred by anyone as a result of that conduct." C.C.P. § 2023.030(a) (emphasis added). And, lest there be doubt, the Court reads Section 2023.010(d) to mean that failing to timely "respond . . . to an authorized method of discovery" like these Requests for Inspection is a "misuse of the discovery process" (C.C.P. § 2023.010(d)) subject to a reasonable sanction under Section 2023.030(a).

Hence, while the Court here may award Fresko a monetary sanction paid by Mr. Sanchez for Fresko's reasonable attorney's fees and costs incurred for this Motion to Compel Inspection of Electronic Devices and Cloud Storage Accounts, the *amount* of this sanction is within the wide discretion of the Court. Simply put, the Court gets to determine what amount is *reasonable* under these circumstances.

Here, in connection with this Motion, Fresko asks the Court to Order Mr. Sanchez to pay a monetary sanction of \$3,660.00, which equals attorneys' fees of \$3,600.00 (for 6 hours of attorneys' fees at \$600 per hour), plus costs of \$60.00 for the filing fee for this Motion. Muller Decl. at ¶¶ 9-10.

In light of prevailing rates in the relevant market, the Court rules that this billable rate sought of \$600.00 per hour is reasonable.

And, after reviewing all the moving and opposition papers and arguments and precedent raised therein, the Court rules that the six hours of attorney time sought here is a reasonable amount of time for Fresko's lawyers to brief and argue this Motion to Compel Inspection of Electronic Devices and Cloud Storage Accounts.

Moreover, the Court finds that the \$60.00 filing fee sought is a reasonable cost that Fresko occurred for filing this Motion to Compel Inspection of Electronic Devices and Cloud Storage Accounts.

So the total monetary sanction awarded now for this Motion to Compel Inspection of Electronic Devices and Cloud Storage Accounts is \$3,660.00, which equals \$3,600.00 in reasonable attorneys' fees (= 6 hours total at \$600.00 per hour) plus \$60.00 in reasonable cost incurred by Fresko's counsel for filing this Motion. And Mr. Sanchez will pay Fresko this \$3,660.00 sanction within 30 days of today.

Conclusion & Order

Accordingly, the Motion is **GRANTED** as follows. The Court **ORDERS Mr. Sanchez within 30 days of today to:**

- 1. Provide Further Responses to Requests for Inspection Nos. 1, 2, 3, and 4;**
- 2. Make Responsive Devices and Cloud Storage Accounts Available;**
- 3. Meet and confer, in the presence of his attorney Mr. Warda, with Fresko's counsel regarding agreed search terms; *and***
- 4. Pay Fresko \$3,660.00 as a monetary sanction for Fresko's reasonable attorneys' fees and costs incurred for this Motion.²**

² Lest there be the slightest doubt or confusion, this \$3,660.00 to be paid within 30 days of today by Mr. Sanchez as a monetary sanction for this Motion to Compel Inspection of Electronic Devices and Cloud Storage Accounts in this Order is separate and distinct from the \$4,860.00 to be paid within 30 days of today by Mr. Sanchez as a monetary sanction for Plaintiff's separate Motion to Compel Further Responses for Production of Documents that the Court also awarded in a separate Order today.

Both Mr. Sanchez and his attorney Michael S. Warda are put on **NOTICE** that failure to comply with this **ORDER** within 30 days of today may result in escalating monetary sanctions against *both* Mr. Sanchez and attorney Warda as well as non-monetary sanctions against Mr. Sanchez including issue, evidentiary, and terminating sanctions.

SO ORDERED.

Date: July 17, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 6

Case Name: *Muhammad Khan v. Bay Area Criminal Lawyers, PC, et al.*

Case No.: 23CV413334

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Muhammad Khan moves under Code of Civil Procedure Sections 473 and 576 for leave to file a First Amended Complaint (“FAC”). Notice of Motion (the “Motion”) at pp. 1-2 (filed: Dec. 8, 2025).

The Motion came on for hearing on July 17, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background

On March 30, 2023, Plaintiff Muhammad Khan (“Plaintiff”), initiated this action by filing his Complaint against defendants Bay Area Criminal Lawyers, PC, Alexander Guilmartin (“Guilmartin”), and David Cohen (“Cohen”) (collectively, “Defendants”). Plaintiff brings causes of action for conversion, fraudulent deceit, breach of contract, fraud/intentional misrepresentation, false promise, concealment, unfair business competition, and negligence.

Defendants Cohen and Guilmartin filed demurrers and motions to strike the pleading. On that demurrer and motion to strike, on September 19, 2024 this Court (Hon. Amber Rosen) issued an order after hearing and ruled as follows:

Guilmartin’s demurrer as to the first, seventh and eighth causes of action on the ground of failure to state a claim is **SUSTAINED** without leave to amend. Defendant Guilmartin’s demurrer as to the second, fourth, fifth and sixth causes of action on the ground of failure to state a claim is **SUSTAINED** with 20 days leave to amend. The demurrer as to the third cause of action for breach of contract is **OVERRULED**.

[...]

[T]his Court similarly **SUSTAINS with 20 days leave to amend** Cohen’s demurrer as to the **second, fourth, fifth, and sixth causes of action** on the ground of failure to state a claim.

(Court’s September 19, 2024 Order at 5:13-15 [emphasis in original].) (filed: Sept. 19., 2024).

The Court ruled that the motions to strike were moot because the Court granted leave to amend. (*Id.* at 6:12).

While the Court in its September 19, 2024 Order gave Plaintiff 20 days leave to amend, Plaintiff failed to file an amended complaint within 20 days.

Next, on November 14, 2024, Plaintiff filed a motion for an extension of time to file an amended complaint. On December 17, 2024, Plaintiff filed a “proposed” first amended complaint (“FAC”).

On April 9, 2025, this Court (Hon. Nishigaya) heard Plaintiff’s motion for extension of time to file an amended complaint. But Plaintiff did not appear, there was no proof of service of the motion on file, and the motion was ordered off calendar. (See April 9, 2025 Minute Order.)

On December 8, 2025, Plaintiff filed a motion for leave to amend currently before the Court (Hon. Parrett). Defendants oppose the motion. For the reasons stated below, the motion is DENIED.

II. Legal Standard

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading . . .” (Code Civ. Proc., § 473, subd. (a)(1); see also *Bedolla v. Logan & Frazer* (1975) 52 Cal.App.3d 118, 135-136 “[T]he trial court has wide discretion in allowing the amendment of any pleading”].) Indeed, “[i]f the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Super. Ct.* (1959) 172 Cal.App.2d 527, 530.)

But if the party seeking amendment has been dilatory and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. (See *Hirsa v. Sup. Ct.* (1981) 118 Cal.App.3d 486, 490.) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence or added costs of preparation, increased burden of discovery, etc. (See *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.)

In the context of a summary judgment motion—which the Court finds to be analogous here given the old age and long docket of this case filed in March 2023—an “unreasonable delay” is typically found when a party seeks to amend after a summary judgment motion has been filed, without a valid explanation for the delay, and when the amendment is based on facts previously known to the party. (*Champlin/GEI Wind Holdings, LLC v. Avery* (2023) 92 Cal.App.5th 218, 224 (*Champlin*); see also *Falcon v. Long Beach Genetics, Inc.* (2014) 224 Cal. App. 4th 1263, 1280 (*Falcon*).) In *Champlin*, *supra*, 92 Cal.App.5th at p. 224, the court found unreasonable delay where the plaintiff sought to amend the complaint after the defendant moved for summary judgment, despite the plaintiff having prior knowledge of the facts supporting the amendment. (*Ibid.*) The court emphasized that allowing such amendments would undermine the purpose of summary judgment by creating a “moving target.” (*Ibid.*)

III. Plaintiff's Request for Judicial Notice

In his motion, Plaintiff requests the Court take judicial notice of the record in this matter including motions and pleadings filed. The request is improper as it was not filed separately from the motion. Yet even if the request were procedurally proper, the Court finds it unnecessary and unhelpful to take judicial notice of entire record in this matter. And because it would be unnecessary and unhelpful to decide this Motion for the Court to take judicial notice of the entire record, Plaintiff's Request for Judicial Notice of the entire record is DENIED. (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6 [declining to take judicial notice of materials not "necessary, helpful, or relevant"].)

IV. Analysis of Plaintiff's Motion

Plaintiff seeks to file a first amended complaint, asserting that at an August 15, 2025 hearing the Court (Hon. Hayashi) asked about the proposed FAC and asked Defendants "to file in or resolve matter within 60 days." (Motion for Leave, p. 1.) The minute order does not indicate that it was regarding a request for leave to amend. (See August 15, 2025 Minute Order.) Plaintiff further states that he has already filed an FAC along with a motion to file the FAC. (Motion for Leave, p. 1.) The remainder of Plaintiff's motion addresses the timeline of his case and procedural process.

In Opposition, Defendants assert the following: 1) the amended pleading exceeds the leave granted to file within 20 days of September 19, 2024 by the Court; 2) Plaintiff's conduct has been dilatory; 3) allegations in the amended pleading should have been in the complaint; and 4) the amended pleading exceeds the scope of leave requested in Plaintiff's motion.

As an initial matter, Plaintiff has not complied with California Rules of Court, rule 3.1324, which requires, in relevant part: a copy of the proposed amendment, serially numbered to differentiate from previous pleadings or amendments; including proposed allegations, where, by page, paragraph, and line number those allegations will be located; and a declaration that specifies the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reason why the request for amendment was not made earlier. (See Cal. Rules of Court, rule 3.1324(a)-(b).) In all of these respects, the Motion is deficient and could be denied on that ground alone.

Moreover, since the initial filing of his pleading, Plaintiff was given the opportunity to amend his pleading after the Court's order on demurrers but failed to file timely. He further delayed requesting an extension to file an amended pleading, doing so after the twenty days leave to amend passed. Further, despite requesting the extension to file the amended pleading, failed to appear at the hearing on that motion.

Last but not least, Plaintiff waited over a year to request leave to amend after the order on demurrer, despite filing several documents since the Court's ruling. (See *Hirsa v. Superior Ct.* (1981) 118 Cal.App.3d 486, 490 [court has discretion to deny leave to amend where party has been dilatory and the delay has prejudiced the opposing party].) This point bears emphasis. The Court in its **September 19, 2024** Order expressly gave Plaintiff **20 days from that date** to file an amended complaint to try to address the pleading deficiencies that the Court carefully identified in its ruling on the demurrer, yet here Plaintiff waited for well over a year

until **December 8, 2025** to file this Motion for an extension of time. Plaintiff cannot delay, dither, and stall for such an unreasonably long period of time before seeking to file an amended pleading and then expect Court to exercise its discretion to allow Plaintiff to do so now. That's not fair, would thwart the efficient administration of our civil justice system, and would only serve at this point to delay the trial. Motion **DENIED**.³

V. Conclusion and Order

For all the above reasons, the Court in the exercise of its discretion **DENIES** Plaintiff's Motion for leave to file a First Amended Complaint now.

SO ORDERED.

Date: July 17, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

³ In light of this ruling **DENYING** the Motion, the Court need not and does not address Defendants' other arguments raised in their Opposition brief.

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